

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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TAB BATTS,

Index No.: 160032/13

Plaintiff,

**VERIFIED AMENDED
COMPLAINT**

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER SCOTT
SEVERINO, BADGE NO. 14957, POLICE OFFICER
JOSHUA GENITA, BADGE NO. 13825, and POLICE
OFFICERS JOHN DOES 1-4, the names being fictitious,
the persons intended being the uniformed police officers
involved in an incident with Plaintiff on August 2, 2012,

Defendants.
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Plaintiff TAB BATTS, by his attorneys, **PHILLIPS, KRANTZ & ASSOCIATES, LLP**,
complaining of the Defendants, respectfully alleges, upon information and belief, as follows:

FIRST CAUSE OF ACTION

Violation of Rights Secured by 42 U.S.C. §1983 and the
Fourteenth Amendment to the United States Constitution for
Seizing, Detaining, Arresting, Imprisoning, Prosecuting
and Assaulting the Plaintiff

1. At all times herein mentioned, Plaintiff **TAB BATTS** was, and still is, a resident of the County of New York, City and State of New York.
2. The cause of action alleged arose in the County of New York, City and State of New York.
3. At all times herein mentioned, Plaintiff **TAB BATTS** has duly complied with all the conditions precedent to the bringing of this action and in particular, has, on October 29, 2012, and within the time prescribed by law, duly served upon Defendants, **THE CITY OF NEW**

YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER SCOTT SEVERINO, BADGE NO. 14957, POLICE OFFICER JOSHUA GENITA, BADGE NO. 13825 and POLICE OFFICERS "JOHN DOES 1-4", the names being fictitious, persons intended being the police officers involved in an incident with Plaintiff on August 2, 2012, a Notice of Claim stating, amongst other things, the time when and place where the injuries and damages were sustained, and more than thirty (30) days have elapsed since the presentation of said notice of claim, and such claim remains unadjusted and unpaid, and thereafter, and within the time provided by law, this action was commenced.

4. That on October 29, 2013, a hearing pursuant to General Municipal Law 50-H was held

5. Defendant **THE CITY OF NEW YORK** is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant **THE CITY OF NEW YORK** assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by **THE NEW YORK CITY POLICE DEPARTMENT**.

6. Defendant **THE NEW YORK CITY POLICE DEPARTMENT** is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to carry out all police functions for the Defendant **THE CITY OF NEW YORK** and assumes the risks incidental to the maintenance of its police force and the employment of police officers.

7. Defendant **POLICE OFFICER SCOTT SEVERINO, BADGE NO. 14957** is and was at all times relevant herein an officer, employee and agent of **THE NEW YORK CITY**

POLICE DEPARTMENT, a municipal agency of Defendant **THE CITY OF NEW YORK**. Defendant **POLICE OFFICER SCOTT SEVERINO, BADGE NO. 14957** is sued individually and in his official capacity.

8. Defendant **POLICE OFFICER JOSHUA GENITA, BADGE NO. 13825** is and was at all times relevant herein an officer, employee and agent of **THE NEW YORK CITY POLICE DEPARTMENT**, a municipal agency of Defendant **THE CITY OF NEW YORK**. Defendant **POLICE OFFICER JOSHUA GENITA, BADGE NO. 13825** is sued individually and in his official capacity.

9. Defendant **JOHN DOES 1 through 4** are and were at all times relevant herein officers, employees and agents of **THE NEW YORK CITY POLICE DEPARTMENT**, a municipal agency of Defendant **THE CITY OF NEW YORK**. Defendant **JOHN DOES 1 through 4** are sued individually and in their official capacities.

10. At all times relevant herein, the individual defendants herein were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of **THE NEW YORK CITY POLICE DEPARTMENT** and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** at all times relevant herein with the power and authority vested in them as officers, agents and employees of **THE NEW YORK CITY POLICE DEPARTMENT** and incidental to the lawful pursuit of their duties as officers, employees and agents of **THE NEW YORK CITY POLICE DEPARTMENT**.

11. That on or about August 2, 2012, Plaintiff **TAB BATTS** was lawfully present

in front of premises identified as 2855 8th Avenue, County, City and State of New York.

12. That at said time and place, Defendant **POLICE OFFICER SCOTT SEVERINO, BADGE NO. 14957**, without a warrant, probable cause, reasonable suspicion or provocation did seize, detain, arrest and imprison the Plaintiff **TAB BATTS**.

13. That at said time and place, Defendant **POLICE OFFICER JOSHUA GENITA, BADGE NO. 13825**, without a warrant, probable cause, reasonable suspicion or provocation did seize, detain, arrest and imprison the Plaintiff **TAB BATTS**.

14. That at said time and place, Defendant **POLICE OFFICER JOHN DOE 1**, without a warrant, probable cause, reasonable suspicion or provocation did seize, detain, arrest and imprison the Plaintiff **TAB BATTS**.

15. That at said time and place, Defendant **POLICE OFFICER JOHN DOE 2**, without a warrant, probable cause, reasonable suspicion or provocation did seize, detain, arrest and imprison the Plaintiff **TAB BATTS**.

16. That at said time and place, Defendant **POLICE OFFICER JOHN DOE 3**, without a warrant, probable cause, reasonable suspicion or provocation did seize, detain, arrest and imprison the Plaintiff **TAB BATTS**.

17. That at said time and place, Defendant **POLICE OFFICER JOHN DOE 4**, without a warrant, probable cause, reasonable suspicion or provocation did seize, detain, arrest and imprison the Plaintiff **TAB BATTS**.

18. That at said time and place, Defendant **POLICE OFFICER SCOTT SEVERINO, BADGE NO. 14957**, without a warrant, probable cause, reasonable suspicion or provocation did assault the plaintiff **TAB BATTS** by using unnecessary and/or excessive force on the plaintiff.

19. That at said time and place, Defendant **POLICE OFFICER JOSHUA GENITA, BADGE NO. 13825**, without a warrant, probable cause, reasonable suspicion or provocation did assault the plaintiff **TAB BATTS** by using unnecessary and/or excessive force on the plaintiff.

20. That Defendant **POLICE OFFICER SCOTT SEVERINO, BADGE NO. 14957** initiated and participated in the malicious prosecution of the Plaintiff **TAB BATTS**.

21. That Defendant **POLICE OFFICER JOSHUA GENITA, BADGE NO. 13825** initiated and participated in the malicious prosecution of the Plaintiff **TAB BATTS**.

22. That at said time and place, Defendants **POLICE OFFICERS JOHN DOES 1 through 4**, without a warrant, probable cause, reasonable suspicion or provocation did assault the plaintiff **TAB BATTS** by using unnecessary and/or excessive force on the Plaintiff.

23. That Defendant **POLICE OFFICERS JOHN DOES 1 through 4** initiated and participated in the malicious prosecution of the Plaintiff **TAB BATTS**.

24. The conduct and actions of Defendants **POLICE OFFICER SCOTT SEVERINO, BADGE NO. 14957, POLICE OFFICER JOSHUA GENITA, BADGE NO. 13825, and POLICE OFFICERS JOHN DOES 1 through 4**, and other unidentified Police Officers, acting under color of law, in physically abusing, assaulting and beating the plaintiff, in using unnecessary and/or excessive force on the plaintiff, in verbally abusing the plaintiff, and in falsely seizing, detaining arresting, and imprisoning plaintiff, and in prosecuting the plaintiff was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the plaintiff's Constitutional Rights

as guaranteed under 42 U.S.C. §1983, and the Fourth, Fifth and Fourteenth Amendment to the United States Constitution.

25. That as a result of the aforementioned occurrence, Plaintiff **TAB BATTS** was caused to sustain severe physical injury, mental and/or emotional distress, mental anguish, shock, emotional disturbance and psychic trauma and plaintiff had to extend money for medical care and legal expenses as well as damage and injury to his reputation, character and earning power.

26. By reason of the foregoing, Plaintiff **TAB BATTS** has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

SECOND CAUSE OF ACTION

Violation of Rights Secured by 42 U.S.C. §1983 and the
Fourteenth Amendment to the United States Constitution
by Failing to Protect the Plaintiff from Unconstitutional Harm

27. The plaintiff incorporates by reference the allegations set forth in Paragraphs 1 through 26 as if fully set forth herein.

28. The conduct and actions of Defendants **POLICE OFFICER SCOTT SEVERINO, BADGE NO. 14957, POLICE OFFICER JOSHUA GENITA, BADGE NO. 13825, POLICE OFFICERS JOHN DOES 1 through 4**, and other unidentified Police Officers, acting under color of law, in failing to take any steps to protect the plaintiff from the unjustified and unconstitutional treatment he was receiving at the hands of the police officer defendants, was done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the plaintiff's Constitutional rights as

guaranteed under 42 U.S.C. §1983, and the Fourth, Fifth and Fourteenth Amendment to the United States Constitution.

29. That as a result of the aforementioned occurrence, Plaintiff **TAB BATTS** was caused to sustain severe physical injury, mental and/or emotional distress, mental anguish, shock, emotional disturbance and psychic trauma and plaintiff had to extend money for medical care and legal expenses as well as damage and injury to his reputation, character and earning power.

30. By reason of the foregoing, Plaintiff **TAB BATTS** has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

THIRD CAUSE OF ACTION

Violation of Rights Under State Law

31. The plaintiff incorporates by reference the allegations set forth in Paragraphs 1 through 30 as if fully set forth herein.

32. By the actions described above, each and all of the defendants jointly and severally, have committed the following wrongful acts against the plaintiff, which are tortious under the laws of the State of New York:

- a. assault and battery of the plaintiff,
- b. trespass on the person of the plaintiff,
- c. false arrest and imprisonment of the plaintiff,
- d. negligence in causing injuries to the plaintiff,
- e. malicious prosecution
- f. abuse of power

g. intentional infliction of emotional distress upon the plaintiff, in that the defendants intended to and did cause the plaintiff severe emotional distress, and the defendants' acts were outrageous in the extreme and utterly unacceptable in a civilized society;

h. negligent hiring, screening, retention, supervision and training of defendant police officers by Defendant **THE CITY OF NEW YORK** and Defendant **THE NEW YORK CITY POLICE DEPARTMENT**;

i. conspiracy by the defendants to commit all of the above acts;

j. violation of rights otherwise guaranteed to the plaintiff under the laws and Constitution of the State of New York.

33. The foregoing acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed him by the laws and Constitution of the State of New York.

34. That as a result of the aforementioned occurrence, Plaintiff **TAB BATTS** was caused to sustain severe physical injury, mental and/or emotional distress, mental anguish, shock, emotional disturbance and psychic trauma and plaintiff had to extend money for medical care and legal expenses as well as damage and injury to his reputation, character and earning power.

35. That this action falls within one or more of the exceptions as set forth in CPLR §1602.

36. By reason of the foregoing, Plaintiff **TAB BATTS** has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

FOURTH CAUSE OF ACTION

Respondeat Superior Claim Under State Law

37. The plaintiff incorporates by reference the allegations set forth in Paragraphs 1 through 36 as if fully set forth herein.

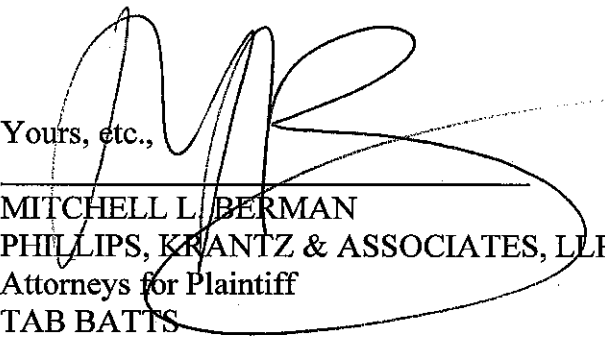
38. The conduct of Defendants **POLICE OFFICER SCOTT SEVERINO, BADGE NO. 14957, POLICE OFFICER JOSHUA GENITA, BADGE NO. 13825, POLICE OFFICERS JOHN DOES 1 through 4,** and other unidentified Police Officers alleged herein, occurred while they were on duty and acting in and during the course and scope of their duties and functions as New York City police officers, and while they were acting as agents and employees of the Defendant **THE CITY OF NEW YORK** and Defendant **THE NEW YORK CITY POLICE DEPARTMENT**, and as a result the defendants **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** are liable to the Plaintiff pursuant to the state common law doctrine of respondeat superior.

39. By reason of the foregoing, Plaintiff **TAB BATTS** has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiff **TAB BATTS** demands judgment against the defendants on each cause of action, in an amount exceeding the jurisdictional limits of all lower courts in addition to punitive damages, together with the interest, costs and disbursements in this action.

Dated: New York, New York
November 20, 2013

Yours, etc.,



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